GLOBAL BUSINESS SOLUTIONS
FUTURE THINKING, NOW

GBS PROCESS FLOW

Protected Disclosures — Organisational Receiving Process Flow

Protected Disclosures Act 26 of 2000 (as amended 2017) and the Protected Disclosures Bill, 2026 · As at 19 October 2026

PREPARED FOR
[Client / Team]

PREPARED BY
Global Business Solutions

DATE
19 October 2026

VERSION
v1.1

DOCUMENT STATUS

Working document for legal review — not legal advice.

PDA = in force (decides protection today); Bill = DRAFT, readiness only; BP = best practice. v1.1 implements the 15 October 2026 V&V review.

01 / PROTECTED DISCLOSURES PROCESS

Purpose, status and reading notes

This flow tells a receiving organisation what to do, by when, and who hands off to whom, from the moment a disclosure arrives until the case closes and lessons feed back into controls. It is built to comply with the law in force today and to be ready for the Bill without redesign.

Legal status. The Protected Disclosures Act 26 of 2000, as amended by Act 5 of 2017 ("PDA"), is the binding law. The Protected Disclosures Bill, 2026 ("Bill") was published for comment (closing 14 May 2026) and is not in force; it will repeal the PDA entirely (Bill s.32 and Schedule). Section numbers change completely between the two instruments. As at 19 October 2026 no report of Cabinet approval for tabling or introduction in Parliament was found, and a reported "revised" Bill text could not be located; re-check before this flow is adopted (verify).

Labels used throughout.

- **PDA** = binding now.
- **Bill** = proposed; build readiness, do not treat as a current legal duty. Bill tests (e.g. the s.5 exclusions) never decide whether a disclosure is protected today; they are recorded as DRAFT readiness notes only.
- **BP** = best practice or internal control; not a statutory deadline. Adopt as policy so it becomes binding internally.

Design principle. Where the PDA and Bill differ, the flow applies the stricter of the two as internal policy. Running to Bill timelines now keeps the organisation comfortably inside the PDA and removes the need for a second redesign at commencement.



Five interpretation points that shape the flow.

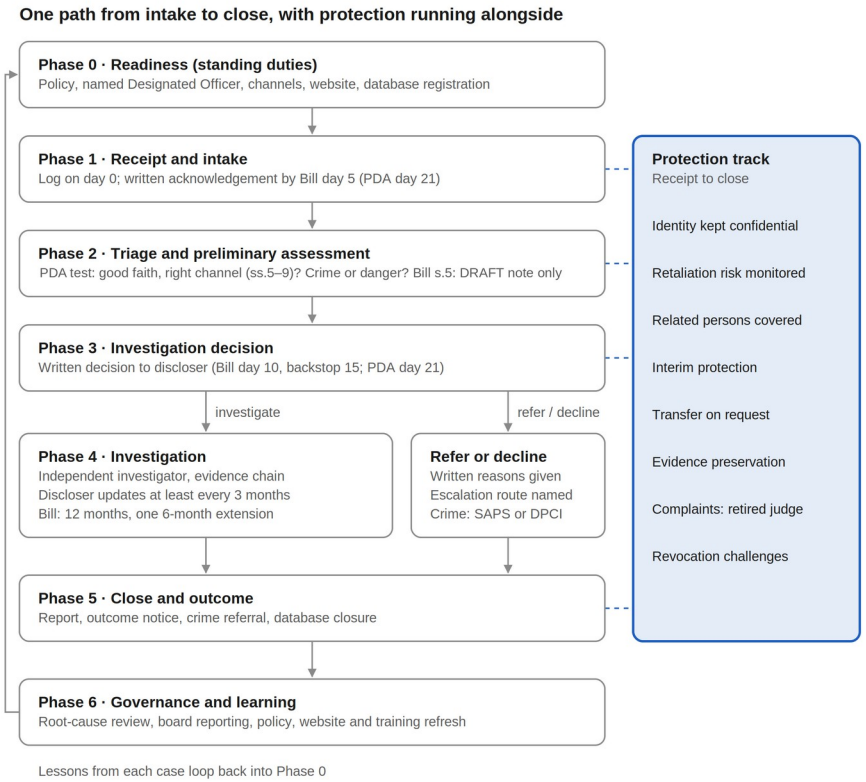
1. **Counting days.** Neither instrument says business or calendar days. Under the Interpretation Act 33 of 1957 s.4, "days" are calendar days, excluding the first day and including the last, unless the last day is a Sunday or public holiday. Diarise in calendar days.
2. **Bill s.14 and the employer channel.** Bill s.14(1) (5-day acknowledgement) applies to disclosures "made in terms of section 11", which covers authorised persons *other than* the employer. Bill s.14(2) and the 12-month limit in s.14(8) apply to recipients in s.4(b)–(e), again excluding the employer. The employer's own procedure is governed by s.12(5), which requires the employer to set its own time frames. However, s.14(3)–(7) refer to any "authorised person", which by definition includes the employer. Treat all of s.14 as applying to the employer channel as a matter of policy.
3. **The 10-day decision.** Bill s.14(4) says the decision must be made "within 10 days" *after the preliminary investigation*, not "within 10 days of receipt". Read literally, the outer limit is day 15. Plan for day 10 from receipt; treat day 15 as the absolute backstop.
4. **Which PDA duties bind an employer.** PDA s.3B (inserted in 2017) binds an employer receiving a disclosure under PDA s.6, as well as recipients under s.7 and s.8. Within 21 days it must decide whether to investigate, refer or not investigate, and acknowledge receipt in writing by informing the discloser of that decision. If it cannot decide within 21 days, it must say the decision is pending, update at intervals of not more than 2 months, and decide within 6 months. The "2 months" and "6 months" therefore relate to the pending decision, not to investigation progress or the final outcome. On conclusion of an investigation the recipient must also inform the discloser of the outcome (s.3B(4)). The duties to notify do not apply where the discloser's identity and contact details are unknown (s.3B(5)(a)), and the notice duties in s.3B(1)(b), (2)(b) and (3) do not apply where compliance would prejudice the prevention, detection or investigation of a crime (s.3B(5)(b)). Where another recipient refers a disclosure to the organisation, the same 21-day duty runs from the referral (s.3B(2)).
5. **Group structures.** Where the organisation is a shareholder, parent or client that receives a disclosure about another entity, it may be the employer (PDA s.1 "employer" includes persons acting on the employer's behalf; Bill s.6 adds clients) or a general recipient (PDA s.9 / Bill s.10). A disclosure referred in by another recipient runs the PDA s.3B(2) clock (step 1.1A). Confirm the recipient's capacity at intake, because it decides which timelines and duties apply.

Roles used. Designated Officer (DO); Legal Adviser (LA); HR Manager (HR); Appointed Investigator (INV); Database Manager (DBM); Senior Sign-off (SSO, e.g. CEO, CFO or Audit Committee chair where management is implicated); Board / Audit or Social & Ethics Committee (BOARD).



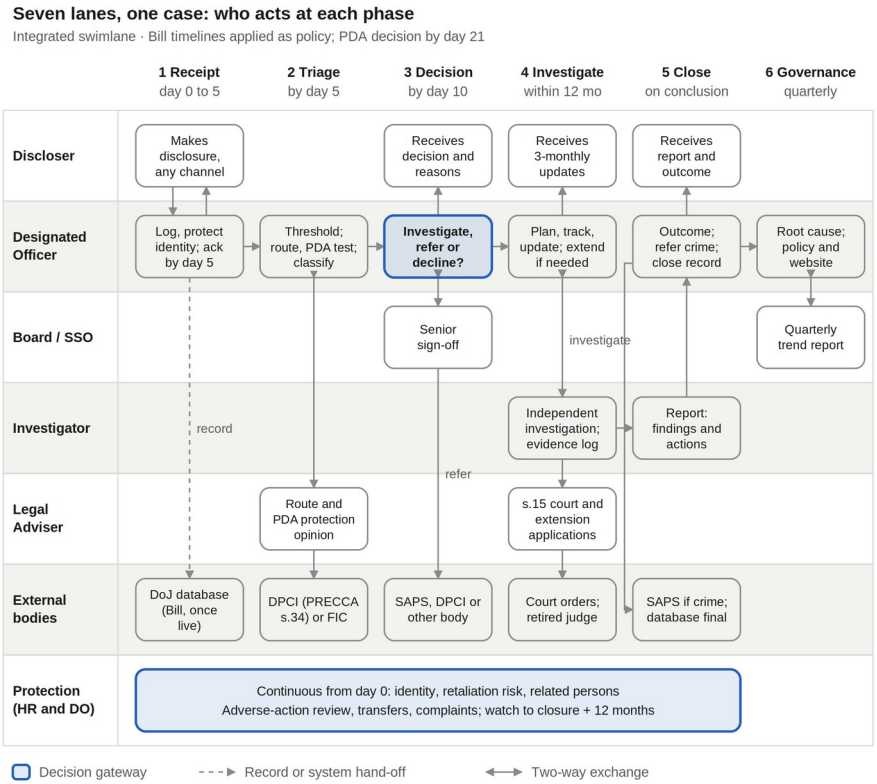
02 / PROTECTED DISCLOSURES PROCESS

Master flow at a glance



Every channel feeds one intake; Phase 3 branches into investigate or refer/decline, and both close in Phase 5. The protection track is not a phase: it opens on day 0 and runs until the case closes, whatever the triage outcome.

Integrated swimlane view



Read each phase column top to bottom to see who acts and who hands off; read each lane left to right to see one party's whole job. The Designated Officer lane is the spine: every other lane connects to it, and the protection lane runs underneath from day 0 until the post-closure watch ends.

Phase 0 — Readiness (standing obligations)

Phase 0 has no case trigger: it must be complete before the first disclosure arrives, because a discloser is only bound to use the internal procedure if the employer has made them aware of it (PDA s.6(1)(a) read with s.6(2)(a)(ii); Bill s.12(2)). Every later deadline assumes these controls exist.

Step	Organisational action	Owner	Deadline	Form / output	Authority
0.1 Adopt the procedure	Board-approved policy and procedure covering every s.12(5) element: named DO and contact details; receipt and handling with time frames; onward referral; compulsory SAPS referral; review and investigation; handling of other wrongdoing found; anonymous reporting and confidentiality; outcome communication. Cover the full protected population, including contractors, TES workers, volunteers, trainees and related persons.	BOARD, LA	Now (PDA); review before Bill commencement	Approved, version-controlled policy	PDA s.6(2)(a)(i); Bill s.12(1)(a), (5); Practical Guidelines for Employees, GN 702 of 31 Aug 2011 (pre-2017; read with amended Act). Organs of state: distribute per PDA s.10(4)(c)
0.2 Appoint the Designated Officer	Name a DO and at least one alternate. Create an independent route (e.g. Audit Committee chair or external provider) for disclosures implicating the DO, CEO or executive.	BOARD	Now	Appointment letters; delegation of authority	Bill s.1 “designated officer”, s.12(5)
0.3 Communicate the procedure	Bring the procedure to the attention of every employee and worker: induction, intranet, notice boards, contractor onboarding. Keep proof of communication.	HR	Now; on every change	Communication log; acknowledgement records	PDA s.6(1)(a), s.6(2)(a)(ii); Bill s.12(1)(b), (2)
0.4 Stand up channels	Written, electronic, oral and anonymous channels, with a return route for anonymous disclosers (case number lookup). If a hotline provider is used, sign an operator agreement covering confidentiality and security.	DO, IT	Now	Channel register; operator agreement	Bill s.11(1)–(2), s.12(5)(f); POPIA s.20–21

Step	Organisational action	Owner	Deadline	Form / output	Authority
0.5 Clean up contracts	Remove or disapply clauses that exclude the Act or discourage disclosure: NDAs, settlement and exit agreements, supplier contracts. Such clauses are void.	LA	Now	Contract review memo; revised templates	PDA s.2(3); Bill s.11(4)
0.6 Publish website content	Publish the five required items: what a protected disclosure is; how to make one; recipient contact details; remedies and protection procedures; when confidentiality-breach liability is excluded.	Compliance	Bill: on commencement (BP: now). Public and state-owned companies: see 0.6A (now)	Website page (F27 checklist)	Bill s.29(4)
0.6A Companies Act confidential disclosure system	Public and state-owned companies: maintain the confidential disclosure system required by Companies Act s.159(7) and post the reg 131 notice of it, with contact details, at the registered office, main business premises and workplaces, on any website aimed at s.159(4) persons, and on the exchange news service if listed. s.159 also protects shareholders, directors, suppliers and other non-employees, so the channel must accept them.	BOARD, Company Secretary	Now (Companies Act); review annually	Reg 131 notice; system description	Companies Act s.159(4), (7) (verify s.159(7) text); Companies Regulations reg 131
0.7 Prepare database registration	Designate a Database Manager and alternate; draft a field map proving no discloser personal information will be uploaded. Register once the DoJ database and regulations are live.	DO, DBM	Bill: on commencement (manner to be prescribed)	Registration confirmation (F23)	Bill s.3(3)–(6)
0.8 Case system and records	Restricted-access case management, a separate sealed identity register, an evidence store with audit trail, and a POPIA retention schedule. Record the lawful basis for processing allegations of criminal behaviour (POPIA ss.26–27, 33) and any reliance on s.18(4) notification exceptions; route access requests by implicated persons to LA.	DO, IT	Now	System access matrix; retention schedule	POPIA s.14, s.18, s.19, ss.26–27, s.33; Bill s.14(10)
0.9 Pre-agree external panel	Pre-vet forensic investigators, external counsel, law enforcement contacts (SAPS, DPCI, IDAC), EAP and security support, so no time is lost in the 5- and 10-day windows.	DO, LA	Now	Panel list with conflict checks	BP



Step	Organisational action	Owner	Deadline	Form / output	Authority
0.10 Train and raise awareness	Train DO, HR, LA, investigators and line managers, including personal criminal exposure under the Bill. Train managers to forward any disclosure to the DO the same day.	HR / L&D	At least annually	Attendance records; materials	Bill s.29(1); BP

Discloser side of Phase 0. Nothing is owed by the discloser yet, but their later obligations depend on this phase: if the organisation has not communicated its procedure, the discloser may go straight to another authorised person and is deemed to have disclosed to the employer (PDA s.6(1)(b), s.6(2)(b); Bill s.12(3)–(4)).

Watch. A procedure that exists on paper but was never communicated gives the employer no benefit under PDA s.6(1)(a) read with s.6(2)(a)(ii) (Bill s.12(2)). Keep dated proof of communication for every worker category, including contractors.

Phase 1 — Receipt and intake

The clock starts on the day information about improper conduct reaches anyone who can receive it for the organisation, not when the DO first reads it. Day 0 is the day of receipt; day 1 is the next calendar day.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
1.1 Recognise and forward	Any person conveys information (not only opinion) about possible improper conduct, through any channel, including a line manager, a meeting remark or a hotline call. (PDA disclosures are made by an employee or worker, s.1; others are handled under Companies Act s.159 or as policy.)	Recipient passes it to the DO without comment or investigation. Wrong internal recipient does not defeat protection: fix the channel administratively.	Any manager or channel operator	Same day (BP)	F01 intake record	Bill s.4(a), s.6; PDA s.6
1.1A Inbound referral	Disclosure referred to us by another recipient (e.g. group parent, regulator or other s.6–8 recipient).	Treat as a new matter from step 1.2. Day 0 = date the referral is received; the PDA s.3B(2) 21-day decision and notice duty applies, with pending notices and the 6-month backstop under s.3B(3) running from the referral.	DO	Day 0 = referral received; PDA: 21 days	F01	PDA s.3B(2)–(3)

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
1.2 Log and reference	DO receives the matter.	Open case file; assign an identity-neutral reference; record date, time, channel, recipient and a verbatim or near-verbatim account. Record the discloser category (employee / worker per PDA s.1 / other) and whether Companies Act s.159 applies; this decides which statutory clocks run. Non-PDA disclosers are handled to the same standard as policy.	DO	Day 0	F01	PDA s.1 "employee", "worker"; Companies Act s.159; Bill s.12(5)(a); BP
1.3 Reduce oral disclosure to writing	Disclosure made orally.	Write it up and have the discloser sign. If the discloser is illiterate or has a disability preventing a written disclosure: read aloud, interpret and explain in a language they understand, record their agreement and mark, and attach a certificate.	DO	At the intake meeting or within 2 days (BP)	F02 transcript; F03 certificate	Bill s.11(3)(a)–(d) (prescribed form; binding on non-employer recipients, BP for employers)
1.4 Secure identity	Discloser identity known or inferable.	Record identity only in the sealed identity register, separate from the case file. Everyone given access signs an undertaking. Release identity only with written consent and only to the extent consented to.	DO	Day 0	F05 identity register; F06 undertakings; F28 consent	Bill s.19(1)–(2), (6)
1.5 Same-day danger and evidence screen	Facts suggest imminent risk to life, health, safety or the environment, or evidence at risk of destruction.	Escalate to emergency services, SAPS, or the OHS function as needed. Issue a litigation hold; image devices and email; restrict system access. Brief LA on a possible s.15 application.	DO, LA, IT	Day 0	Escalation note; hold notice	Bill s.12(5)(c), s.15; PDA general law



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
1.6 Acknowledge in writing	Every disclosure where a return route exists, including anonymous disclosures via the channel.	Send an acknowledgement: reference number; what happens next and when; single point of contact; confidentiality and its limits (court or law may require disclosure); summary of protection; request for any further information. Do not state whether it is protected yet. Before sending, LA to confirm whether PDA s.3B(5)(b) applies (notice would prejudice a criminal investigation, including FICA tipping-off). If so, withhold, record reasons on F09, and diarise when notice can safely be given. Where identity and contact details are unknown, s.3B(5)(a) applies: record it.	DO	Bill: within 5 days (s.14(1)); PDA: within 21 days, combined with the decision (s.3B(1))	F04 acknowledgement	PDA s.3B(1), s.3B(5); Bill s.14(1), s.19(3)(b)
1.7 Database entry	Bill in force and database live.	Upload receipt and date of receipt, with no personal information of the discloser. Cross-reference the internal case number.	DBM	Bill: manner and timing to be prescribed; BP within 5 days	F23 upload record	Bill s.3(2)(b)(i)–(ii), s.3(5)
1.8 Diarise all clocks	File opened.	Calendar, with owners: PDA day 21 (decision/acknowledgement or pending notice), pending notices at ≤ 2-month intervals and the 6-month decision backstop (binding now); and the Bill acknowledgement, preliminary-assessment, decision, 3-monthly update, 9-month review and 12-month deadlines (policy now).	DO	Day 0	F13 tracker	PDA s.3B(1), (3); Bill s.14 (policy)

Discloser obligations at this stage. Disclose in good faith, on reason to believe, to a qualifying recipient (PDA s.1 “disclosure”, ss.5–9; Bill s.4, s.5(a) DRAFT). Use the employer’s procedure if made aware of it (PDA s.6(1)(a); Bill s.12(2)). Provide the prescribed information in the prescribed manner (Bill s.11(1)). Sign the written record of an oral disclosure, or confirm agreement and affix a mark (Bill s.11(3)). Do not disclose information known to be false (PDA s.9B; Bill s.5(d), s.13).

Hand-offs. Hotline operator → DO (same day). Line manager → DO (same day). IT → evidence preservation. Emergency services or SAPS where danger is imminent. DBM → DoJ database (Bill).

Watch. For an anonymous disclosure with no return route, record that acknowledgement was impossible and why. Do not open a separate grievance file and let the disclosure clock lapse: if a grievance and an allegation are mixed, run both in parallel.



Phase 2 — Triage and preliminary assessment

By day 5 (Bill s.14(3) timeline, adopted as policy) record a documented classification. Whether a disclosure is protected is decided only under the PDA in force: good faith (ss.6–8; s.9), reason to believe (s.1), a qualifying channel (ss.5–9) and, for s.8 and s.9 recipients, a reasonable belief that it is substantially true. Bill tests are recorded as DRAFT readiness notes and never ground a "not protected" decision. Protection work starts now and does not wait for that answer.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2.1 Threshold test	File opened.	Is it *information* about *improper conduct* by an employer or employee: POCA or PRECCA offences, any crime, breach of a legal obligation, miscarriage of justice, health or safety danger, environmental damage, EEA or PEPUDA discrimination, or concealment of any of these? Location and governing law are irrelevant. A pure personal grievance goes to the grievance procedure with a redirect notice.	DO	Day 1–2	F07 memo, part A; F29 redirect	Bill s.1 "improper conduct", "disclosure"; PDA s.1 "disclosure", "impropriety"
2.2 Recipient capacity and route	Threshold met.	Confirm in what capacity the organisation received it: employer (PDA s.6 / Bill s.6), legal adviser (PDA s.5 / Bill s.7), Cabinet member or MEC (PDA s.7 / Bill s.8), Chapter 9 body, PSC, AG or prescribed body (PDA s.8 and GN R.949 / Bill s.9), or general recipient (PDA s.9 / Bill s.10). For a general disclosure record the s.9(1) beliefs, the s.9(2) trigger and the s.9(3) factors.	DO, LA	Day 1–3	F07 part B	PDA ss.5–9; GN R.949 of 2018; Bill s.4, s.6–10 (DRAFT)

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2.3 Protection test (PDA)	Route confirmed.	PDA test (binding): confirm the disclosure was made in good faith (PDA ss.6–8), on reason to believe it shows an impropriety (s.1), through a qualifying channel (ss.5–9), and, for s.8/s.9 recipients, on a reasonable belief that it is substantially true; for s.9 also confirm a s.9(2) trigger and s.9(3) reasonableness. Test on evidence, not tone or timing; mixed motives do not automatically defeat good faith. Get a written LA opinion before any "not protected" finding. Bill s.5 exclusions (wrong recipient, known or ought-to-have-known falsity, intent to harm, pecuniary gain, illegal purpose, avoiding discipline): record for readiness only; they do not decide protection today.	DO, LA	Day 3–5	F07 part C	PDA s.1 "disclosure", ss.5–9 (good faith ss.6–8, s.9(1)); Bill s.5 (DRAFT readiness only)
2.4 Classification	Steps 2.1–2.3 done.	Record one of: protected under the PDA; not protected under the PDA (only on the step 2.3 PDA test, with LA opinion, never on Bill s.5 grounds); or grounds not to investigate (Bill s.14(5) grounds adopted as policy: no merit, trivial, more appropriate lawful method, or previously adequately dealt with). Note separately, as DRAFT readiness, whether the Bill tests would give a different result. A "not protected" finding removes statutory protection; it does not remove the need to deal with a credible allegation through ordinary governance, and it never justifies discipline for making the disclosure without separate LA advice (LRA s.187(1)(h), s.186(2)(d)).	DO, SSO	Bill: within 5 days of receipt (policy); PDA: inside the 21-day decision window	F07 part D; risk rating	PDA ss.1, 5–9; LRA s.186(2)(d), s.187(1)(h); Bill s.14(3), (5) (DRAFT; policy)

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2.5 Mandatory-referral screen	Any sign of crime, a parallel investigation, or imminent danger.	Check: is another body already investigating (coordinate now, see 3.4; Bill s.14(9)(a)(i) stand-down on commencement)? Is a crime clearly committed (refer to law enforcement, s.14(9)(a)(ii))? Does the DO reasonably believe it is a crime or imminent danger (compulsory SAPS referral, s.12(5)(c))? Does PRECCA s.34 apply: does a person in a position of authority know, or suspect (or ought reasonably to know or suspect), that any corruption offence (PRECCA ss.3–16 or 20–21, any amount) or theft, fraud, extortion, forgery or uttering involving R100,000 or more has been committed? If so, report to a police official (SAPS/DPCI) and record the CAS number. Is a FICA s.29 report required, with tipping-off restrictions? If notice to the discloser would prejudice either, apply PDA s.3B(5)(b) (see 1.6).	DO, LA	Screen by day 5; inform discloser within 5 days of becoming aware (s.14(9)(b))	F07 part E	PRECCA s.34; FICA s.29; PDA s.3B(5)(b); Bill s.12(5)(c), s.14(9) (DRAFT)
2.6 Conflict and escalation check	DO, executive or board member implicated, or the organisation itself is the subject.	Move the matter to the independent route. Record that a disclosure about the employer may not be referred back to that employer.	DO, BOARD	Day 0–2	Escalation record	Bill s.14(7)(c); BP
2.7 Retaliation and related-person risk	File opened.	Map reporting lines, who controls the discloser's pay, performance, shifts and contract renewals, and who else is exposed: family, household, colleagues, anyone who assisted. Put interim measures in place and record reasons at the time.	HR, DO, LA	Day 0 onward; review monthly	F08	Bill s.1 "related person", s.21; PDA s.3



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2.8 Privilege and implicated persons	Investigation likely.	LA to instruct any written analysis to preserve privilege. Treat the allegation as unproven; restrict circulation. Allegations of crime are special personal information (POPIA s.26): process only under an authorisation (ss.27, 33), document any s.18(4) notification exception, and route implicated persons' access requests to LA. Any suspension of an implicated person must rest on the ordinary disciplinary policy, not on the disclosure.	LA, HR	Before written analysis	Privilege note	Common law privilege; LRA; POPIA ss.18, 26–27, 33; BP

Discloser obligations at this stage. Provide further information if asked, truthfully. Do not continue participating in the conduct disclosed; that is a revocation ground (Bill s.27(1)(a)). Do not commit an offence under the Act while providing information (s.27(1)(d)).

Hand-offs. DO → LA (PDA protection test and route opinion). DO → independent route where conflicted. DO → police official / DPCI (PRECCA s.34) or FIC (FICA s.29) where triggered. HR → retaliation monitoring.

Watch. Do not test whether the allegation is *true* at triage. Under the PDA, protection attaches to a disclosure made in good faith, on reason to believe, through a qualifying channel (ss.5–9); for s.8 and s.9 recipients the discloser must also reasonably believe it is substantially true. Truth is for Phase 4. Never classify a disclosure as "not protected" on Bill criteria: discipline that follows risks an automatically unfair dismissal (LRA s.187(1)(h)) or unfair labour practice (s.186(2)(d)) finding.

Phase 3 — Investigation decision

The discloser must receive a written decision: under the Bill within 10 days after the preliminary investigation (plan for day 10; backstop day 15), and under the PDA within 21 days of the disclosure. Silence is itself a breach.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3.1 Decide the route	Classification complete.	Choose: investigate internally; refer to another authorised person; or not investigate on a s.14(5) ground. Senior sign-off; LA review of every decline.	DO, SSO, LA	Bill: 10 days after preliminary investigation; PDA: 21 days	F09 decision record	Bill s.14(4)–(5); PDA s.3B(1)(a)
3.2 If PDA decision not possible	Matter too complex to decide by day 21 (PDA).	Tell the discloser in writing that a decision is pending; repeat at intervals of not more than 2 months; decide within 6 months.	DO	PDA: day 21, then every ≤ 2 months, final by 6 months	F09 pending variant	PDA s.3B
3.3a Investigate	Route = investigate.	Written notice: decision, who will investigate (role), update frequency, expected timeline. Proceed to Phase 4.	DO	With 3.1	F09 variant A	Bill s.14(4)(a)
3.3b Refer to another authorised person	Another body is better placed.	Tell the discloser the reasons and which body; send the referral without identity unless the discloser has consented in writing; update the database. Never refer back to the employer that is the subject.	DO	With 3.1; database update BP within 5 days	F09 variant B; F10 referral letter; F23	Bill s.14(4)(b), (7)(a)–(c), s.19(1); PDA s.3B(1)(a)(ii); attach PDA s.8 / GN R.949 list to F10

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3.3c Not investigate	s.14(5) ground established.	Written reasons. Name the discloser's real options: disclosure to a body listed in or prescribed under PDA s.8 (GN R.949 of 2018; attach the list to F09 variant C), or a general disclosure under PDA s.9(2)(c) if no action is taken within a reasonable period. (Bill, on commencement: s.9 bodies, s.10(2)(c) and court review.) Record the dismissal and reason on the database.	DO, LA	With 3.1	F09 variant C; F23	PDA s.3B(1)(a)(iii), s.8, s.9(2)(c); GN R.949; Bill s.14(5)–(6), s.3(2)(b)(iii)(cc) (DRAFT)
3.4 Coordinate with another body that is investigating	Same subject already under investigation by a body authorised by law.	PDA (now): do not duplicate the agency's work; agree in writing with the agency which internal steps (including discipline) may proceed, and keep disciplinary capability. Inform the discloser in writing unless PDA s.3B(5)(b) applies (record reasons on F09). Bill (on commencement): stand down per s.14(9)(a).	DO	PDA: decision within 21 days; Bill: inform within 5 days of becoming aware (policy)	F11	PDA s.3B(1)(a), s.3B(5)(b); Bill s.14(9)(a)(i), (b) (on commencement)
3.5 Law enforcement referral	Crime clearly committed, or DO reasonably believes crime or imminent danger.	Refer to SAPS, DPCI, IDAC or the relevant agency with an evidence summary; record the case number. Where PRECCA s.34 applies (any corruption offence, or theft, fraud, extortion, forgery or uttering of R100,000+, known or suspected), report to a police official (SAPS/DPCI). Before informing the discloser, LA to confirm whether PDA s.3B(5)(b) applies; if so, withhold, record reasons on F09 and diarise when notice can safely be given. Agree with the agency how any internal disciplinary process will run without prejudicing the criminal case.	DO, LA	Imminent danger: immediately; inform discloser within 5 days of becoming aware; BP: refer within 5 days	F10; F11	PRECCA s.34; PDA s.3B(5)(b); Bill s.12(5)(c), s.14(9)(a)(ii), (b) (DRAFT)

Discloser obligations at this stage. None new. A discloser dissatisfied with a decline may disclose elsewhere; the organisation must not discourage this, and any contract term that tries to is void (PDA s.2(3); Bill s.11(4)).

Hand-offs. DO → receiving authorised person (with a redacted pack). DO → law enforcement agency. DBM → database (referral date and recipient, or dismissal and reason). DO → Phase 4 investigator.

Watch. The retired judge under Bill s.24 hears complaints about detrimental action, identity breaches, revocation and extension applications. It is not a forum for appealing a decision not to investigate, so do not signpost it as one.



Phase 4 — Investigation

Under the Bill the investigation must finish within 12 months of receipt, with one extension of up to 6 months granted by the retired judge (Bill s.14(8)). The PDA sets no outer limit; adopt the Bill's limit as policy.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
4.1 Appoint investigator	Decision to investigate.	Appoint someone free of any reporting line, financial interest or relationship with implicated persons. External appointment, instructed by LA and overseen by the Board, where senior management is implicated. Signed conflict declaration, undertaking and terms of reference.	DO, LA, BOARD	BP: within 10 days of decision	F12; F06	Bill s.14(2); BP
4.2 Plan and brief	Appointment made.	Investigation plan with milestones; brief the investigator that concealing or suppressing evidence is an offence (up to 15 years).	INV, DO	BP: within 5 days of appointment	F13 plan and tracker	Bill s.14(11)
4.3 Gather evidence	Plan approved.	Collect documents and data under chain of custody; interview witnesses after a confidentiality briefing; give implicated persons a fair opportunity to respond. Where another form of wrongdoing emerges, extend scope under the procedure.	INV	Ongoing	F14 evidence register; interview notes	Bill s.12(5)(d)–(e); PAJA (public bodies); audi alteram partem

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
4.4 Court assistance	Evidence likely to be destroyed, concealed or tampered with, or a witness under pressure, inducement or intimidation.	Apply to court for a preservation or restraint order. This is a duty, not a discretion. If the risk is assessed as below threshold, record why.	LA, DO	Immediately on the risk appearing	F17 application pack	Bill s.15
4.5 Progress updates	Every open investigation.	Written, substantive update: steps done, steps outstanding, next update date. Anonymous disclosers via the return channel.	DO	Bill: at least every 3 months	F15	Bill s.14(8)(d) (adopted as policy now)
4.6 Extension	Month-9 review shows the 12-month limit is at risk.	Apply to the retired judge in the prescribed manner for up to 6 more months, before the 12 months expire. Only one extension is possible. Tell the discloser.	DO, LA	Apply by month 10 (BP); limit is month 12	F16	Bill s.14(8)(b)–(c), s.24(3)(a)
4.7 Adverse-action review	Any proposed HR decision affecting the discloser or a related person: discipline, performance rating, transfer, contract renewal, promotion.	Independent approver reviews before it is taken; reasons recorded separately from the disclosure file, showing the decision is not linked to the disclosure.	HR, independent approver	Before the decision	F18	Bill s.21(5)–(7); PDA s.3
4.8 Parallel discipline	Disciplinary process against the discloser pre-dates or runs alongside.	Keep it structurally separate, with its own chairperson and file. Document the chronology showing independent grounds.	HR, LA	Ongoing	Chronology memo	Bill s.5(h), s.21 (second) (3), s.21(5)
4.9 Transfer request	Discloser reasonably believes they may be adversely affected and asks to move.	Transfer if reasonably possible or practicable, on terms no less favourable without written consent.	HR	Promptly on request	F19	Bill s.28(4)–(5); PDA s.4(3)



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
4.10 Identity demands	A court or law requires confidential information, or a complaint under s.24(3)(b)(ii) is lodged.	Tell the discloser in advance where possible. If a complaint is lodged with the retired judge, disclose nothing until the judge's investigation and recommendation are complete. Seek in camera evidence or redaction orders.	LA	Before any release	F28; court applications	Bill s.19(3)–(5), s.25(4)
4.11 Revocation check	Evidence that the discloser participated after disclosing, made a knowingly false material statement, disclosed solely or substantially to avoid discipline, or committed an Act offence.	Stop; LA opinion; follow the revocation protocol in section 10. Protection continues while any challenge runs.	DO, LA	When the evidence emerges	See section 10	Bill s.27

Discloser obligations at this stage. Cooperate truthfully; keep the investigation's confidential information confidential except where a court or law requires it (Bill s.19(3)(a)). Do not continue participating in the conduct.

Hand-offs. DO → external investigator. LA → High Court or magistrate's court (s.15). DO → retired judge (extension). HR → independent approver. Investigator → law enforcement if a crime becomes clear mid-investigation (coordinate now; stand down under Bill s.14(9) on commencement).

Watch. The update record is evidence in its own right: a missed 3-monthly update breaches internal policy now and will be a statutory breach once the Bill commences. Calendar every update on day 0.

Phase 5 — Close, outcome and enforcement

The case is closed only when the report is issued, the discloser has a substantive outcome, any crime is referred, and the database and records are finalised. Recommendations then carry High Court enforcement risk under the Bill.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
5.1 Report	Investigation concluded.	Report with findings and recommendations. Draft redacted from the first paragraph: no confidential personal information about the discloser, including indirect identifiers such as dates, quotes or org-chart detail.	INV, DO	Within the 12-month (or extended) limit	F20	Bill s.16(1), (2)(b)
5.2 Distribute report	Report signed off.	Make available to the discloser; the discloser's employer (or former employer at the time of the conduct); or the relevant person where the disclosure is not about an employer.	DO	Promptly on sign-off (BP within 10 days)	Distribution log	Bill s.16(2)(a)
5.3 Outcome notice	Report distributed.	Substantive notice: what was found, what is being done, and the discloser's remaining options (Bill, on commencement: court review of the report, s.16(3); complaint or court if detriment occurs). Withhold third-party personal information and live criminal-case detail. Not required only where the discloser's identity and contact details are unknown (PDA s.3B(5)(a)).	DO	With 5.2	F21	PDA s.3B(4) (statutory: inform discloser of outcome at conclusion); Bill s.16(2)–(3)
5.4 Law enforcement referral	Findings show a criminal offence.	Refer to the relevant agency regardless of any internal sanction; record the case number. PRECCA s.34 offences (any corruption offence, or theft, fraud, extortion, forgery or uttering of R100,000+) go to a police official (SAPS/DPCI).	DO, LA	BP: within 5 days of report	F10	Bill s.16(4); PRECCA s.34



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
5.5 Implement recommendations	Report accepted.	Owner and due date per recommendation; track to completion; report to BOARD. Unimplemented recommendations can be enforced in the High Court by the authorised person or any interested party.	Management, DO	Per action plan	Action tracker	Bill s.17
5.6 Finalise database	Outcome notice issued.	Record finalisation and date.	DBM	BP: within 5 days	F23	Bill s.3(2)(b)(iii)(dd)
5.7 Records retention	Case finalised.	Keep records only as long as needed to finalise, unless law requires or lawful purposes reasonably require longer. If kept longer, record reasons without delay and tell the discloser. Destroy or de-identify per POPIA.	DO, Records	On finalisation	F22	Bill s.14(10); POPIA s.14
5.8 Close protection file	Case closed.	End-state retaliation assessment; set a post-closure watch period for adverse actions (BP 12 months), since retaliation often follows closure.	HR, DO	On closure, then watch period	F08 closing entry	Bill s.21; BP
5.9 Award readiness	Organisation prosecuted and a monetary sanction possible.	Preserve records of what information came from whom and when, since the court tests origin, novelty and proof of offence elements. Public servants, PRECCA s.34 reporters, plea-deal informants, accomplices and law enforcement officials are excluded.	LA	During proceedings	Evidence provenance file	Bill s.18

Discloser obligations at this stage. Keep the report's confidential content confidential except as law or a court requires. A discloser aggrieved by the report may apply to court for review in the prescribed manner (Bill s.16(3)).

Hand-offs. DO → discloser, employer or relevant person (report). DO → law enforcement. Management → BOARD (recommendation tracking). LA → High Court (s.17 enforcement, or defending one). DBM → database.

Watch. "The matter is concluded" is not an outcome notice. Give enough substance for the discloser to understand the result and what they can still do.

Phase 6 — Governance and learning

Phase 6 turns individual cases into control improvements and board oversight. Almost none of it has a statutory deadline, so it must be fixed in policy or it will be skipped.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
6.1 Root-cause review	Case closed.	Which control failed; whether policy was adequate; whether internal channels were trusted; whether related persons were affected. Review the organisation, never the discloser's credibility.	DO, HR, LA	BP: within 30 days of closure	F25	BP
6.2 Governance reporting	Quarterly cycle.	Volumes by channel and category; timeliness against every deadline; retaliation complaints; referrals; recommendations outstanding; policy changes. Aggregate only.	DO, Company Secretary	Quarterly	F26	King V Code on Corporate Governance (2025; effective for financial years from 1 Jan 2026), ethics and compliance principles (confirm principle number from the Code); Companies Regulations reg. 43 (Social and Ethics Committee, where applicable)

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
6.3 External visibility check	Annually.	Anticipate that database data will appear in the DoJ Annual Report and complaints in the retired judge's annual report. Reconcile internal figures with database entries.	DO, DBM	Annually	Reconciliation note	Bill s.3(7), s.24(4)
6.4 Policy and website refresh	Annually, or on any change of DO, channel or law.	Update procedure, DO contact details and the five s.29(4) website items; re-communicate.	Compliance, LA	At least annually	Revised policy; F27	Bill s.12(1), s.29(4)
6.5 Training refresh	Annually and after significant cases.	Refresh DO, HR, LA, investigator and manager training, including the offences register in section 14.	HR / L&D	At least annually	Attendance records	Bill s.29(1); BP
6.6 Legislative watch	Bill progress, regulations, database go-live.	Track introduction in Parliament, amendments, commencement proclamation (which may differ per provision, s.33(2)) and regulations. Run a gap analysis at each step.	LA	Ongoing	Change log	Bill s.30, s.33

Hand-offs. DO → Audit / Social and Ethics Committee. Compliance → website owner. LA → policy owners.

Parallel track — protection, complaints, revocation and remedies

This track opens on day 0 and runs until the post-closure watch period ends. Its events are triggered by what happens to people, not by the case timeline.

Event	Trigger	Organisational action	Deadline	Form	Authority
P1 Confidentiality	Always.	Identity and identifying information released only with written consent and to employees competent to deal with the disclosure; no investigation information to any other person.	Continuous	F05, F06, F28	Bill s.19(1)–(2), (6): up to 10 years
P2 Liability shield	Discloser threatened with a civil claim or charge for breaching confidentiality.	Do not institute or threaten; such a threat is itself occupational detriment. LA to assess reasonable-belief test.	On the threat	LA memo	Bill s.20, s.1 “occupational detriment” (h)–(i); PDA s.9A
P3 Occupational detriment	Any adverse employment action linked in any way to the disclosure.	Prevent via 4.7; if it occurs, reverse and remedy. The employer, the person acting with its authority and a client are jointly and severally liable.	Immediately	F18	Bill s.21(1), (7)–(8); PDA s.3, s.3A (joint and several liability of employer and client)
P4 Detrimental action	Threats, intimidation, harassment, injury, property damage or discrimination against the discloser or any related person, inside or outside work.	Security response; SAPS report where criminal; EAP support; record in F08. Protect against acts by third parties the organisation incites, authorises or knowingly permits.	Immediately	F08	Bill s.1 “detrimental action”, s.21(2)–(3), (8): up to 15 years
P5 Burden of proof	Discloser shows a protected disclosure and a linked detriment.	Organisation must show the action was not retaliatory; its evidence is the F18 record made at the time.	In proceedings	F18, chronology	Bill s.21(5)–(6)

Event	Trigger	Organisational action	Deadline	Form	Authority
P6 Witness protection	Serious threat to safety.	Tell the discloser the Witness Protection Act applies and how to apply to the Office for Witness Protection; do not apply on their behalf without consent.	On identifying the risk	Referral note	Bill s.22; WPA s.7 as amended by Schedule
P7 Legal aid	Discloser in court or tribunal and cannot afford representation.	Court or tribunal refers to Legal Aid SA; organisation to respect confidentiality of that direction.	Court-driven	—	Bill s.23; Legal Aid SA Act s.22A (inserted)
P8 Complaint to retired judge	Discloser, related person or representative complains of detrimental action, imminent identity disclosure or revocation.	Respond to information requests (refusal without lawful ground is an offence); allow entry to premises for documents; give reasonable assistance; do not interfere. Receive the judge's decision and any referral to law enforcement or a Chapter 9 institution.	As the judge requires	Response pack	Bill s.24(3), (5)–(7), (12), s.25–26: up to 2 years
P9 Revocation	Evidence of a s.27(1) ground during or after investigation.	LA-signed written notice to the discloser; notify the Director: Office for Witness Protection if the person is under protection; signpost complaint or court. Protection continues until the judge or court rules otherwise if challenged.	On the finding	F24	Bill s.27

Event	Trigger	Organisational action	Deadline	Form	Authority
P10 Remedies claimed	Discloser or related person lodges a complaint, CCMA referral or Labour Court or other court claim.	Litigation response. Dismissal in breach is automatically unfair; other detriment is an unfair labour practice via LRA s.191 conciliation, then Labour Court. Courts may order compensation, actual damages or remedial steps.	Employee referral windows: 30 days (dismissal, from dismissal or, if later, the final decision to dismiss or uphold it) / 90 days (unfair labour practice, from the act or knowledge of it)	Litigation file	PDA s.4(1)–(2) (workers: any court, s.4(1A); orders, s.4(1B)); LRA s.186(2)(d), s.187(1)(h), s.191(1)(b), s.191(13); Bill s.28(1)–(3) (DRAFT)

Discloser obligations and conduct

The discloser keeps protection by choosing the right recipient, following a communicated procedure, and disclosing in good faith and on reason to believe (PDA ss.1, 6–9). The Bill's s.5 exclusions are shown as DRAFT only; they do not decide protection today. The organisation should explain these in F04, without using them to discourage disclosure.

Obligation	When	Consequence if not met	Authority
Disclose to a qualifying recipient	At disclosure	Not protected	PDA s.1 "protected disclosure", ss.5–9; Bill s.4, s.5(a) (DRAFT)
Disclose in good faith and on reason to believe	At disclosure	Not protected (PDA)	PDA s.1 "disclosure", s.6(1), s.7(1), s.8(1), s.9(1); Bill removes the good-faith test (DRAFT)
Use the employer's procedure, if made aware of it	Internal disclosure	Route may be challenged; if no procedure exists, may go to any authorised person and is deemed to have disclosed to the employer	PDA s.6(1)(a), s.6(2)(a)(ii); Bill s.12(2)–(4)
Use the prescribed manner and information (other recipients)	External disclosure	Formal defects; follow-up requests	Bill s.11(1)
Sign the written record of an oral disclosure, or confirm and mark	Oral disclosure	Record may be disputed	Bill s.11(3)
General route only: good faith; reasonable belief the information is substantially true; not for personal gain; a s.9(2) trigger; reasonable in the circumstances (s.9(3))	Disclosure to media or other persons	Not protected	PDA s.9 (Bill s.10, DRAFT)

Obligation	When	Consequence if not met	Authority
Do not disclose known or ought-to-be-known false information with intent to harm where harm results	Always	Not protected (no good faith); offence, up to 2 years; prosecution needs written authority of the Director of Public Prosecutions	PDA s.9B; Bill s.5(d)–(e), s.13 (DRAFT)
Not for pecuniary gain (Act rewards excepted), an illegal purpose, or solely or substantially to avoid discipline	Always	Bill (DRAFT): not protected. PDA today: relevant only through good faith and, for a general disclosure, personal gain (s.9(1)(b))	Bill s.5(f)–(h) (DRAFT); PDA s.9(1)(b)
Stop participating in the conduct disclosed	After disclosing	Protection may be revoked	Bill s.27(1)(a)
No material statement known or believed to be false	Throughout	Revocation	Bill s.27(1)(b)
Respect confidentiality of investigation information, subject to court or law	Throughout	Loss of confidence; possible liability	Bill s.19(3)(a)
Claim remedies through the proper forum	After detriment	Remedies may be delayed; retired judge may decline where the LRA applies	Bill s.24–28

Rights the organisation must not obstruct. Anonymous disclosure (Bill s.11(2), s.12(5)(f)); disclosure to other authorised persons; complaint to the retired judge; court or Labour Court relief; transfer on request (s.28(4)); witness protection and legal aid.

Hand-offs and interfaces register

Every hand-off carries a confidentiality risk: send the minimum, redact identity unless the discloser consented in writing, and log what was sent, to whom and when.

Party or system	Trigger	What is handed over	When	Step	Authority
Hotline or channel provider	Disclosure received by provider	Full report, return-channel reference	Same day	1.1	POPIA s.21 operator agreement
Line managers	Disclosure made to them	Everything received, no copies retained	Same day	1.1	Procedure
IT / records	Evidence risk or investigation	Litigation hold, device images, access logs	Day 0 onward	1.5, 4.3	BP
Legal Adviser / external counsel	Route, exclusion, decline, s.15, revocation	Privileged instructions	From day 1	2.2–2.8	Privilege
Independent route (Audit Committee chair)	DO or executive implicated	Whole case	Day 0–2	2.6	BP; Bill s.14(7)(c)
HR	Retaliation risk; adverse actions; transfers	Need-to-know extract, no disclosure content	From day 0	2.7, 4.7, 4.9	Bill s.21, s.28(4)
Other authorised person (PDA s.8 bodies, GN R.949; Bill s.8–10)	Referral decision	Redacted referral pack; F10 with the PDA s.8 / GN R.949 list attached	With decision	3.3b	PDA s.3B(1)(a)(ii), s.8; GN R.949; Bill s.14(7)



Party or system	Trigger	What is handed over	When	Step	Authority
SAPS / DPCI / IDAC / IPID	Crime, imminent danger, PRECCA s.34 (any corruption offence, or theft/fraud/extortion/forgery/uttering of R100,000+, known or suspected)	Evidence summary; case number returned	Immediately to BP 5 days	3.5, 5.4	PRECCA s.34 (police official); PDA s.3B(5)(b); Bill s.12(5)(c), s.14(9), s.16(4)
Financial Intelligence Centre	Suspicious or unusual transaction (accountable and reporting institutions)	STR, without tipping off	As FICA prescribes	2.5	FICA s.29
Sector regulator (e.g. FSCA, PA, NNR, Dept of Employment and Labour)	Regulatory breach with a reporting duty	Regulatory report	Per sector law	2.5	Sector law
DoJ central database	Receipt, referral, dismissal, finalisation	Case status fields, no personal information	As prescribed	1.7, 3.3, 5.6	Bill s.3
Retired judge	Extension application; complaint information request; entry	Application; documents requested	Before month 12; as requested	4.6, P8	Bill s.14(8), s.24–25
Courts	Evidence risk; in camera or redaction; enforcement; review	Applications	As triggered	4.4, 4.10, 5.5	Bill s.15–17, s.19(4)–(5)
Office for Witness Protection	Serious safety threat; revocation of a protected person	Discloser's own application; revocation notice	On risk; on revocation	P6, P9	Bill s.22, s.27(2); WPA
Legal Aid SA	Court or tribunal direction	Handled by the court	Court-driven	P7	Bill s.23
CCMA / Labour Court	Discloser refers a dispute	Response and evidence	30 days (dismissal) / 90 days (ULP) for the employee's referral	P10	PDA s.4(1)–(2); LRA s.186(2)(d), s.187(1)(h), s.191(1)(b), s.191(13); Bill s.28(3)
Board / Audit / Social and Ethics Committee	Quarterly; senior-management cases	Aggregate report; case oversight where implicated	Quarterly	6.2	Governance



Party or system	Trigger	What is handed over	When	Step	Authority
External investigator	Appointment	ToR, access, redacted file	Within BP 10 days of decision	4.1	Bill s.14(2)
EAP / security provider	Wellbeing or safety risk	Minimum personal detail with consent	On risk	P4	BP

Adjacent regimes to check at triage. Companies Act s.159 (separate whistleblower protection for company-related disclosures, including by shareholders, directors, suppliers and other non-employees; public and state-owned companies must maintain the s.159(7) confidential disclosure system and post the reg 131 notice now: step 0.6A). NEMA s.31 (environmental whistleblowing). OHSA and MHSA (health and safety reporting). These can run alongside the PDA and may impose their own timelines.

Forms register

Twenty-nine forms support the flow; the GBS Baseline 1.0 template (T-number) is shown where one already exists, so the gaps are the forms still to draft.

Form	Name	Used at	Existing template	Statutory form?
F01	Intake record and case register entry	1.1–1.2	T2 (partly)	No
F02	Written record of oral disclosure, signed	1.3	—	Bill s.11(3)(a)
F03	Read-back and interpretation certificate	1.3	—	Yes, prescribed (Bill s.11(3)(d))
F04	Acknowledgement of receipt with confidentiality-limits notice	1.6	T1	No
F05	Sealed identity register	1.4	—	No
F06	Confidentiality undertaking	1.4, 4.1	T10	No
F07	Preliminary assessment memo (parts A–E)	Phase 2	T2	No
F08	Retaliation and related-person risk assessment and interim-measures log	2.7, P4, 5.8	T3	No
F09	Decision notice: investigate / refer / not investigate (variant C attaches the PDA s.8 / GN R.949 list) / pending (PDA); records any s.3B(5) reliance	Phase 3	T4 (add pending variant)	No
F10	Referral letter to authorised person or law enforcement (attach list of bodies under PDA s.8(1) and GN R.949 of 14 Sept 2018 with the matters each covers)	3.3b, 3.5, 5.4	T5	No

Form	Name	Used at	Existing template	Statutory form?
F11	Coordination notice to discloser (Bill s.14(9) stand-down on commencement)	3.4, 3.5	—	No
F12	Investigator appointment, terms of reference and conflict declaration	4.1	T6	No
F13	Investigation plan and deadline tracker	1.8, 4.2	—	No
F14	Evidence register and chain of custody	4.3	—	No
F15	Progress update letter	4.5	T7	No
F16	Extension application to the retired judge	4.6	—	Yes, prescribed manner
F17	Section 15 court application pack	4.4	—	Court rules
F18	Adverse-action review record	4.7, P3, P5	—	No
F19	Transfer request and decision	4.9	—	No
F20	Investigation report	5.1	T8 (structure only)	No
F21	Outcome notice	5.3	T9	No (notice is a PDA s.3B(4) duty)
F22	Retention decision and discloser notice	5.7	—	No
F23	Database registration, upload, update and closure record	0.7, 1.7, 3.3, 5.6	—	Manner to be prescribed
F24	Revocation notice	P9	T11	No
F25	Root-cause memo	6.1	—	No
F26	Governance trend report	6.2	—	No
F27	Website content checklist (five s.29(4) items)	0.6, 6.4	—	No
F28	Written consent to identity release	1.4, 3.3b, 4.10	—	No (Bill s.19(1)(a))
F29	Redirect notice (grievance or wrong channel)	2.1	—	No



Forms marked “prescribed” cannot be finalised until regulations under Bill s.30 are published.



Timeline calendar and offences register

Using Bill timelines as internal policy, a routine case has four hard Bill dates in the first fortnight (adopted as policy now), the statutory PDA day-21 decision, then a 3-monthly rhythm to month 12. Only the PDA s.3B dates (day 21; pending notices ≤ 2 months; 6 months; outcome on conclusion) are statutory today.

Case calendar (calendar days from receipt)

When	Event	PDA	Bill	Type
Day 0	Log, reference, identity secured, danger screen, clocks diarised	—	—	BP
Day 0 onward	Retaliation risk assessment and interim measures	Implied (s.3)	Implied (s.21)	BP
By day 5	Written acknowledgement	Folded into day 21	Bill duty (s.14(1))	Bill (adopted as policy)
By day 5	Preliminary investigation and classification	—	Bill duty (s.14(3))	Bill (adopted as policy)
Within 5 days of becoming aware	Inform discloser of stand-down (parallel investigation or crime)	—	Bill duty (s.14(9)(b))	Bill (adopted as policy)
By day 10 (backstop 15)	Written decision: investigate, refer or not	—	Bill duty (s.14(4))	Bill (adopted as policy)
By day 21	Decision and acknowledgement, or “pending” notice (from receipt, or from receipt of a referral: s.3B(2))	Statutory (s.3B)	—	Statutory
Every ≤ 2 months to month 6	Pending-decision notices, final decision by month 6	Statutory (s.3B)	—	Statutory



When	Event	PDA	Bill	Type
Decision + 10 days	Investigator appointed	—	—	BP
Months 3, 6, 9, 12	Progress updates	—	At least every 3 months (s.14(8)(d))	Bill (adopted as policy)
Month 9	Extension review	—	—	BP
By month 12	Investigation complete, or extension applied for	—	Bill duty (s.14(8)(a)–(b))	Bill (adopted as policy)
By month 18	Absolute end if extended	—	Bill duty (s.14(8)(c))	Bill (adopted as policy)
On conclusion	Report, distribution, outcome, crime referral	Statutory (s.3B(4)), no days set	Bill duty, no days set (s.16)	Statutory (PDA outcome); Bill (policy) for report
Outcome + 5 days	Database finalised	—	Manner to be prescribed	BP
Closure + 30 days	Root-cause review	—	—	BP
Closure + 12 months	Post-closure retaliation watch ends	—	—	BP

Offences register (Bill, unless stated)

Offence	Who is exposed	Maximum imprisonment	Authority
Concealing or suppressing evidence during an investigation	Authorised person and its staff	15 years	s.14(11)
Subjecting a discloser to occupational detriment, or a discloser or related person to detrimental action	Anyone, including managers	15 years	s.21(8)
Disclosing identity or investigation information	Authorised person and its staff	10 years	s.19(6)



Offence	Who is exposed	Maximum imprisonment	Authority
Knowingly false disclosure intended to and causing harm	Discloser	2 years (DPP written authority to prosecute)	PDA s.9B (in force); Bill s.13
Refusing the retired judge's information request without lawful ground	Any person or employer	2 years	s.24(6)
Interfering with the retired judge	Anyone	2 years	s.24(12)
Contravening regulations (if regulations so provide)	Anyone	3 years	s.30(3)

Fines may be imposed instead of or alongside imprisonment for each offence.

Corrections to existing GBS materials and Bill drafting issues

Comparing the Process Flow Table, Baseline 1.0, Training Paper, slide deck and Navigator guide against the Bill text turned up points that should be fixed before client use. This flow already reflects them.

Corrections to GBS materials

#	Current statement	Where	Correction
1	SAPS referral "within 5 days of identifying criminal conduct"	Flow Table 3.3–3.4; Baseline 3.3–3.4; Training Paper 6.1; slides 21, 25, 30	Bill s.12(5)(c) and s.14(9)(a)(ii) set no referral deadline. The 5 days in s.14(9)(b) is to inform the discloser. Present 5 days as BP.
2	Decision "within 10 days of receipt"	All materials	s.14(4): within 10 days *after the preliminary investigation*, so up to day 15. Keep day 10 as policy, but cite accurately.
3	PDA "progress updates every 2 months" and "outcome within 6 months"	Flow Table 4.3, 5.2; Baseline 4.3, 5.2; Training Paper 6.1, 10; slide 21	Under PDA s.3B these relate to a *pending decision*, not investigation progress or outcome. The PDA has no outcome deadline, but s.3B(4) does require the discloser to be told the outcome when the investigation concludes (statutory now).
4	PDA "acknowledge within 21 days" as a stand-alone step	Flow Table 1.2; T1	PDA s.3B joins acknowledgement to informing the discloser of the decision within 21 days.
5	Decline letters signpost a complaint to the retired judge	Baseline 3.2, T4 variant C; Flow Table 3.2; slide 25	Bill s.24(3) covers detrimental action, identity breaches, revocation and extensions, not declines. Signpost PDA s.8 bodies (GN R.949 of 2018) and a general disclosure under PDA s.9(2)(c) instead; Bill s.9, s.10(2)(c) and court review only once the Bill commences.
6	Database upload "immediately on receipt"	Flow Table 1.3; Baseline 1.3; slides 21, 23	Bill s.3 sets no timing; it will be prescribed. Label as BP pending regulations.

#	Current statement	Where	Correction
7	Bill s.14(1), (2) and (8) presented as binding employers	All materials	Textually these apply to s.11 and s.4(b)–(e) recipients, not the employer channel. Apply by policy and say so.
8	Training "now a statutory duty for both sectors" citing s.29(2)–(3)	Flow Table 6.4; Baseline 6.4; slide 28	s.29(2)–(3) bind Cabinet members and SAJEI. Employers' duties are s.29(1) (awareness) and s.29(4) (website).
9	Investigator "within 10 days", database close "within 5 days", root cause "within 30 days" shown beside statutory citations	Flow Table 4.1, 5.4, 6.1	Internal BP only. Label clearly so they are not mistaken for law.
10	Framatome disclosure analysed under PDA s.8 and Bill s.9	Training Paper 13	Those sections list public oversight bodies. A majority shareholder is more likely an employer-side recipient (Bill s.6: client or person acting on behalf) or a general recipient (PDA s.9; Bill s.10). LA to review the opinion's reasoning.
11	Acknowledgement row "failure risk: criminal offence to suppress evidence"	Training Paper 6.1 table	Mismatched; missing an acknowledgement is non-compliance, not the s.14(11) offence.
12	"King V Principle 13"	Flow Table 6.2; slide 28	Cite King V (2025; effective for financial years from 1 January 2026) by name; confirm the principle number from the Code itself before citing.
13	PDA s.3B cited for investigation conduct and independence	Flow Table 4.1–4.3; Baseline 4.1–4.2	s.3B deals with deciding and informing only.

Drafting issues in the Bill worth raising with the Portfolio Committee

1. Scope mismatch in s.14: subsections (1), (2) and (8) exclude employers; (3)–(7) include them. The 12-month limit and extension regime should expressly apply, or not apply, to employers.
2. s.14(4) has a dangling "or" and an unclear starting point for the 10 days. "Days" is not defined as business or calendar days.
3. s.14(9)(a)(ii) bars any investigation where a crime is clearly committed. Read literally, this stops employers running internal forensic or disciplinary investigations into fraud. A coordination mechanism with law enforcement is needed instead.
4. s.12(5)(d) requires PAJA-compliant review by all employers, although PAJA governs administrative action by organs of state.
5. s.18(1) refers to convicting an employer "of improper conduct in terms of this Act", but the Act creates no such offence.



6. s.21 has two subsections numbered (3), and s.21(3)(b) contains a stray "because". s.19(3)(a) is double-lettered.
7. s.24(3)(a) refers to extension under s.14(8)(a); the extension provision is s.14(8)(b).
8. The Schedule's amendments refer to the Protected Disclosures Act 2000 (and "Act No. 26 of 2025") instead of the new Act, and its heading cites section 31 instead of 32.
9. There is no mechanism to challenge a decision not to investigate, and no time limit for issuing the s.16 report.
10. s.11(3) requires a signature on oral disclosures, which sits awkwardly with anonymous oral disclosures under s.11(2).

Revision history — v1.1 (19 October 2026)

#	Finding (severity)	Where	Change made
1	Protection classified on Bill tests instead of the PDA (Critical)	2.3, 2.4, Phase 2 intro and Watch, Labels, s.11 table, Phase 1 discloser obligations, hand-offs, both diagrams	Step 2.3 now runs the binding PDA test (good faith ss.6–8, reason to believe s.1, channel ss.5–9, substantially true for s.8/s.9, s.9(2)–(3)); Bill s.5 recorded as DRAFT readiness only and never grounds "not protected"; LRA s.187(1)(h)/s.186(2)(d) risk flagged; diagrams corrected.
2	PDA s.3B(4) outcome duty labelled BP (Major)	5.3; calendar "On conclusion"; correction 3; F21; interpretation point 4	Outcome notice cited as statutory PDA s.3B(4), no day count; s.3B(5)(a) exemption noted.
3	PDA s.3A and s.9B swapped (Major)	Phase 1 discloser obligations; s.11 false-information row; offences register; P3	False-disclosure offence now PDA s.9B; P3 joint liability now PDA s.3A; NDPP corrected to Director of Public Prosecutions (re-verified).
4	Wrong s.6 citations for procedure duties (Major)	0.1, 0.3, Phase 0 intro, discloser side, Watch, s.11 table	0.1 → PDA s.6(2)(a)(i); 0.3 → s.6(1)(a), s.6(2)(a)(ii); "made aware" rule cited as s.6(1)(a) with s.6(2)(a)(ii); deemed-disclosure cites s.6(1)(b), s.6(2)(b).
5	Bill section numbers used for routes and decline letters (Major)	2.2, 3.3c, hand-offs register, s.11 general route, correction 5	PDA numbering first (s.5 legal adviser, s.7 Cabinet/MEC, s.8 bodies and GN R.949, s.9 general) with Bill numbers in brackets; "court review" removed from current decline options.
6	PRECCA s.34 trigger understated (Major)	2.5, 3.5, 5.4, hand-offs, Phase 2 hand-offs	Any corruption offence (no threshold) or theft/fraud/extortion/forgery/uttering R100,000+, known or suspected (or ought to be); report to a police official (SAPS/DPCI); CAS number recorded.



#	Finding (severity)	Where	Change made
7	Companies Act s.159(7)/reg 131 step missing (Major)	New step 0.6A; 0.6 deadline; adjacent regimes	Added Phase 0 step for public and state-owned companies: s.159(7) system and reg 131 notice, effective now.
8	Bill-only deadlines labelled “Statutory” (Minor)	Calendar Type column and intro; 4.5; Phase 4 Watch	Bill-only rows relabelled “Bill (adopted as policy)”; only PDA s.3B dates remain statutory; Watch reworded.
9	PDA s.3B(5) exemptions missing (Minor)	1.6, 2.5, 3.4, 3.5, interpretation point 4, F09	Added s.3B(5)(b) check before any notice in criminal/FICA matters, with reasons on F09; s.3B(5)(a) noted.
10	Discloser category not recorded (Minor)	1.1, 1.2	Intake records employee / worker / other and Companies Act s.159 applicability.
11	Inbound referral branch missing (Minor)	New step 1.1A; interpretation points 4–5; calendar day 21	Added 1.1A: day 0 = referral received; s.3B(2)–(3) clocks run from the referral.
12	Day-0 diary omits PDA clocks (Minor)	1.8	Diary now includes PDA day 21, ≤ 2-monthly pending notices and 6-month backstop.
13	Blanket stand-down adopted now (Minor)	3.4, 2.5, Phase 4 hand-offs, F11	Now: coordinate with the agency in writing and keep disciplinary capability; Bill s.14(9)(a) stand-down only on commencement.
14	Practical Guidelines currency (Minor)	0.1 Authority	Cited GN 702 of 31 Aug 2011 (pre-2017; read with amended Act); s.10(4)(c) distribution limited to organs of state.
15	LRA referral windows missing (Improvement)	P10; hand-offs CCMA row	30 days (dismissal; from dismissal or later final decision) / 90 days (ULP); PDA s.4(1A), (1B); LRA s.191(13).
16	King Code currency (Improvement)	6.2; correction 12	Cited King V (2025; effective for financial years from 1 Jan 2026).
17	POPIA handling of implicated persons thin (Improvement)	0.8, 2.8	Added lawful basis for criminal-behaviour information (POPIA ss.26–27, 33), s.18(4) exceptions, access-request routing.
18	Prescribed-bodies list not attached (Improvement)	3.3b, 3.3c, F09, F10, hand-offs	F09 variant C and F10 attach the PDA s.8 / GN R.949 (14 Sept 2018) list.
O1	Open: Companies Act s.159(7) full text (verify)	0.6A	Duty relied on via reg 131 cross-reference; full s.159(7) text not retrieved.



#	Finding (severity)	Where	Change made
O2	Open: Bill status and any revised Bill text (verify)	Section 1 Legal status; 6.6	No report of tabling or a revised text found as at 19 Oct 2026; re-check justice.gov.za and PMG.
O3	Open: Bill offences s.13, s.24(6), s.24(12), s.30(3) and Bill s.18, s.22, s.23, s.27, s.28 (verify)	Offences register; P6–P9; 5.9	Not verified against full Bill text; unchanged.
O4	Open: Interpretation Act s.4, LRA s.191 wording, GN R.949 amendments, FICA s.29/NEMA s.31 (verify)	Interpretation point 1; P10; F10; 2.5	Consistent with standard sources; primary text not re-checked.
O5	Open: client-specific questions (public/state-owned/listed; organ of state; FICA institution; group employer; Bill timelines as policy; non-employee channel)	Phase 0, 2.2, 2.5, F04	Answer per client before adoption.

Sources

- Protected Disclosures Bill, 2026 (published text, project file).
- GBS Process Flow Table, Baseline 1.0, Training Paper, training deck and Navigator User Guide (project files).
- Bowmans, “South Africa: Draft Protected Disclosures Bill, 2026 published for public comment”, 16 April 2026 (https://bowmanslaw.com/insights/south-africa-draft-protected-disclosures-bill-2026-published-for-public-comment/); SAnews, “Government moves to strengthen whistleblower protection with new Bill”, 9 April 2026 (https://www.sanews.gov.za/node/80704). A search on 28 September 2026 found no report of formal introduction in Parliament; confirm before relying on commencement planning.
- PDA 26 of 2000 as amended by Act 5 of 2017, consolidated text (Acts Online): ss.1, 3, 3A, 3B, 4, 6–9, 9A, 9B, 10 checked in the 15 October 2026 V&V review (https://shop.acts.co.za/protected-disclosures-act-2000/protected_disclosures_act_2000_content.php); s.9B prosecution authority (Director of Public Prosecutions) re-checked 19 October 2026. FICA, LRA s.191, NEMA s.31 and the Interpretation Act are cited from general knowledge; verify section wording against consolidated texts.



- PDA Regulations, GN R.949, GG 41904, 14 September 2018, Annexure A (prescribed persons and bodies under s.8) (https://shop.acts.co.za/protected-disclosures-act-2000/r949_annexure_a.php); Practical Guidelines for Employees, GN 702, GG 34572, 31 August 2011.
- Companies Act 71 of 2008 s.159 and Companies Regulations reg 131 (https://shop.acts.co.za/companies-act-2008/r351_131__notice_of_availability_of_system_to_receive_confidential_disclosures.php).
- Cliffe Dekker Hofmeyr, “My duty to report a suspicion of fraud and the consequences thereof”, 23 March 2021 (PRECCA s.34); Cliffe Dekker Hofmeyr, “King V Code published and effective date announced”, 31 October 2025.
- GBS Legal V&V Review: PDA Receiving Process Flow, 15 October 2026 (findings implemented in v1.1).

This flow is a working document for legal review, not legal advice.